ZAJEL – Terms & Conditions

Consignment Note

Each consignment shall be correctly addressed by the Consignor and accompanied by Zajel's form of consignment note, which the Consignor shall properly complete and sign prior to despatch of the consignment. The Consignor is responsible for the correctness of any information given or declaration made and is liable for the consequences of any false or erroneous declaration of information.

Parties and sub-contracting

(a) Where the Consignor is not the owner of any consignment or part thereof he shall be deemed to be the authorised Agent of the owner(s). The Consignor accepts these conditions for himself and all other persons on whose behalf he/she is acting or is deemed to be acting.

(b) Zajel may sub-contract all or part of this contract and may engage an Agent or any other person (who may also sub-contract) to fulfil all or any part of this contract.

Common Carrier

The company is not a common carrier and accepts goods for transport only on those conditions.

Variations

No waiver or alterations of or additions to these conditions may be made except in writing signed by a CEO of Zajel. No Agent or person employed by Zajel may alter, add to or waive any of these conditions and where any oral or written instructions differ from or conflict with these conditions, these conditions shall prevail and such instructions shall be of no effect and shall not waive, vary or modify these conditions.

Liabilities not assumed

(a) Zajel, its Agents and Service Providers shall not be liable for any loss, damage, costs or expenses suffered or incurred by the Consignor or any other person arising out of or in connection with this contract or the handling, storage or transport or other dealing with any consignment except where such loss, damage cost or expense shall arise as a direct result of any wilful act of neglect or default by Zajel and then only to the extent of the lesser of:

(i) AED 110

(ii) the value of the consignment or

(iii) the cost of reshipping it (at the Consignor's choice)

(b) Zajel, its Agents and Service Providers shall not be liable under any circumstances for any special or consequential damages or loss including commercial or financial loss, loss of profit, income, market or business opportunity.

(c) The Consignor in writing must make any claim to Zajel within 10 days of the date of claim arising. No claim will be considered until all transport charges have been paid.

Consignment acceptable for Transport

Zajel reserves the right:

(a) To inspect the consignment, but this inspection shall not constitute a warranty that a particular item is suitable for carriage.

(b) To refuse at its sole discretion to transport any goods tendered for transport.

(c) To reject goods if their transport may delay other consignments or cause damage.

(d) To destroy or otherwise deal with goods if they pose a risk to other goods, property, life or health.

Hazardous or prohibited items will not be accepted except under special arrangements. A detailed list of prohibited goods is available on request.

Unacceptable goods

If the Consignor consigns unacceptable goods or undervalues them for customs purposes, Zajel may return the consignment at the Consignor's expense or deal with it as deemed appropriate, including abandoning transport.

Warranties by the Consignor

The Consignor warrants that:

(a) The person handing over the consignment is authorised.

(b) The contract is made in the normal course of business.

(c) The description and declared value of the consignment are correct.

(d) Transporting the consignment is not illegal.

(e) The consignment is properly labelled and addressed.

Customs Clearance

Zajel will use reasonable efforts to clear customs but is not liable for penalties or costs caused by delays or refusal by customs authorities. The Consignor agrees to indemnify Zajel against such penalties or losses.

Charges

Transport charges, duties and other charges from acceptance to delivery shall be paid by the Consignor according to the relevant authority or body.

Methods of Transport

Zajel will transport consignments as expeditiously as possible but reserves the right to use any route or procedure. The Consignor will not impose liability on agents or subcontractors greater than that accepted by Zajel.

Insurance

No insurance will be effected except upon written instruction from the Consignor. If insurers dispute liability, the Consignor must seek recourse directly from the insurer and not from Zajel or its agents.

Delivery

(a) Delivery is deemed complete when Zajel obtains a receipt or signed delivery form at the address on the consignment note.

(b) If delivery cannot be completed or goods are not collected within five working days, Zajel may sell the goods after giving notice and deduct charges and expenses from the proceeds.

Payment Terms

(a) Payment must be made by the Consignor on the 20th day of the month following Zajel's invoice.

(b) If payment is to be made by the Consignee on delivery and the Consignee refuses, the Consignor remains liable. Zajel may withhold delivery until payment is made.

Lien

Zajel has the right to detain goods for unpaid charges. If charges remain unpaid for 21 days after the due date, Zajel may sell or dispose of the consignment and apply proceeds toward the outstanding sums.

Country Law

This contract shall be governed by and construed in accordance with UAE law and subject to the jurisdiction of the UAE courts.